

ASCII MASTER FLOW – PANEL 1/12: Four-dimensional constitutional map

CENTRE-STATE AND INTER-STATE RELATIONS

- +-- LEGISLATIVE: Articles 245-255 and Seventh Schedule
- +-- ADMINISTRATIVE: Articles 256-263
- +-- FINANCIAL: Articles 265-293 plus 246A / 269A / 279A
- +-- INTER-STATE / MARKET: Articles 261-263 and 301-307

METHOD: identify field -> constitutional route -> check -> remedy.

MUST REMEMBER: Keep four owned dimensions separate: legislative relations under Articles 245-255, administrative relations under Articles 256-263 and 355/365, financial relations under Articles 268-293, and inter-State coordination under Articles 261-263 and 301-307.

ASCII MASTER FLOW – PANEL 2/12: Legislative competence and State-field entry

COMPETENCE FIRST

Article 245 reach -> Article 246 lists -> Article 248 residue

+-- Union 100 | State 61 | Concurrent 52

+-- Article 246A: special GST competence

PARLIAMENT IN STATE FIELD

249 Rajya Sabha | 250 Emergency | 252 State request | 253 treaty | 356 breakdown

Each route has a separate trigger, duration and amendment consequence.

ASCII MASTER FLOW – PANEL 3/12: Doctrines, repugnancy and State Bills

TRUE NATURE -> ENTRY -> RECONCILIATION -> CONFLICT

pith and substance -> harmonious construction -> Article 254 repugnancy

M. Karunanidhi (1979): real, direct and irreconcilable Concurrent-field conflict

STATE BILL CONTROLS

prior presidential sanction != Governor reservation under Article 200

Article 201 presidential consideration; no automatic assent after State reconsideration.

ASCII MASTER FLOW – PANEL 4/12: Administrative cooperation and central agencies

ARTICLES 256-257

State compliance + no impediment -> bounded Union directions

ARTICLES 258 / 258A -> reciprocal entrustment

ARTICLE 312 -> Rajya Sabha route for IAS / IPS / Indian Forest Service

CBI / DSPE ACT

State consent for ordinary operation; Articles 32/226 court orders remain possible

2024 West Bengal ruling: Article 131 suit maintainable at preliminary stage, merits open.

ASCII MASTER FLOW – PANEL 5/12: Articles 355-365 and judicial limits

DUTY -> REMEDY -> TEMPORARY CONSEQUENCE

Article 355 Union duty

Article 356 exceptional proclamation + Parliament + review

Article 357 temporary exercise of State legislative power

Article 360 separate financial-emergency route

Article 365 non-compliance may supply material, never automatic rule

State of Rajasthan (1977) -> review not wholly excluded

S.R. Bommai (1994) -> federalism, review and floor-test discipline.

ASCII MASTER FLOW – PANEL 6/12: Fiscal architecture from tax to borrowing

ARTICLE 265: authority of law

268 / 269 / 269A -> assigned and apportioned revenue

270 -> divisible pool | 271 -> Union surcharge outside sharing

275 -> constitutional grants | 282 -> any-public-purpose grants

280 -> Finance Commission | 292 / 293 -> borrowing

285 / 289 -> reciprocal property and income tax immunities with exceptions.

CLOSE DISTINCTION: Article 254 repugnancy is principally a Concurrent-List conflict rule; pith and substance tests competence, Article 262 permits statutory exclusion for defined river disputes, and Article 263 creates an enabling power rather than a self-executing adjudicatory council.

ASCII MASTER FLOW – PANEL 7/12: Fiscal evolution, Sixteenth Finance Commission and GST

PLAN ERA -> FC / GST / NITI ERA

Planning Commission discretion -> NITI has no devolution power

Sixteenth Finance Commission 2026-31 -> 41% vertical share

horizontal weights include income distance, demography, ecology and GDP contribution

GST: Articles 246A + 269A + 279A

Union one-third votes | States two-thirds | three-fourths decision threshold

Mohit Minerals (2022): Council recommendations are recommendatory, not binding.

ASCII MASTER FLOW – PANEL 8/12: River-water dispute route and jurisdiction

ARTICLE 262 + 1956 ACT

negotiation -> dispute-specific tribunal -> publication -> implementation

Parliament may exclude court jurisdiction over the defined water dispute

Article 131 does not displace the special Article 262 statutory bar

CURRENT CONTROL

2019 Amendment Bill lapsed with the Seventeenth Lok Sabha

A revised permanent-tribunal proposal is not enacted law

Cauvery implementation uses the 2018 Scheme and management institutions.

ASCI MASTER FLOW – PANEL 9/12: Intergovernmental forums and current operation

ARTICLE 263 INTER-STATE COUNCIL

President establishes when public interest requires; inquiry, discussion, recommendation
1990 presidential order | PM chair | advisory

ZONAL COUNCILS

Five statutory councils under States Reorganisation Act 1956 | Home Minister chair

NEC is separate under 1971 Act, not a sixth Zonal Council

2026 official activity: Central, Northern, Eastern and Southern zonal mechanisms.

ASCTII MASTER FLOW – PANEL 10/12: Common market, recognition and layered regulation

ARTICLE 261 -> recognition of public acts, records and proceedings; civil execution

ARTICLES 301-304 -> free trade with bounded regulation and non-discrimination

Jindal Stainless (2016): no tax-free promise; Article 304(a) targets discrimination

MINOR MINERALS

MMDR Section 3(e) Centre notifies category

Section 15 States make concession rules -> layered power, not State exclusion.

ASCII MASTER FLOW – PANEL 11/12: Commissions, eleven PYQs and Prelims firewalls

REFORM EVIDENCE

Rajamannar -> State autonomy | Sarkaria -> cooperative safeguards | Punchhi -> modern machinery

ELEVEN PYQ ROUTES

2019 doctrines | 2020 centralisation | 2021 CBI | 2022 parties/autonomy

2023 Article 356 + GST | 2024 relations reform + list trap

2025 fiscal federalism + constitutional-body + minor-mineral traps

FIREWALLS: Article 365 is not automatic; GST is not a Concurrent-list tax entry;
Zonal Councils are statutory; the 2019 water Bill is not law.

ASCII MASTER FLOW – PANEL 12/12: Marks-scaled answer spine and qualified verdict

10 MARKS: definition -> 2-3 anchors -> qualification -> verdict

15 MARKS: thesis -> dimensions -> evidence/case -> counterpoint -> reform

20 MARKS: legislative + administrative + fiscal + inter-State -> diagnosis -> reform

EVIDENCE CHAIN

claim -> Article/institution -> operation -> State/Union counterpoint -> commission remedy

VERDICT

Strong Union power is constitutionally bounded; durable relations require consultation before compulsion, predictable finance, shared data and reviewable discretion.

LEGAL/SOURCE LIMIT: Special Reference No. 1 of 2025 rejects rigid judicial timelines and deemed assent, recognises Article 200 discretion, and permits only a limited mandamus against prolonged, unexplained and indefinite inaction. Do not continue the displaced April 2025 timeline rule.